WESTERLY THERMOSTATS: TERMS AND CONDITIONS OF SALE

Form T&C-2020 · Issued January 2020 · Supersedes all prior editions

¶ 1. Acceptance. Every order is subject to Seller's acceptance.

¶ 2. Pricing. Goods are invoiced at the prices in effect on the date of shipment.

¶ 3. Terms of payment. Net thirty (30) days from the invoice date.

¶ 4. Title; risk of loss. Both pass to Buyer upon delivery to the carrier.

¶ 5. Shortages. Buyer must report any shortage within five (5) days.

¶ 6. Warranty. Seller's published warranty applies.

¶ 7. Limitation of liability. Seller's liability is limited to the extent permitted by law.

¶ 8. Returned goods. No goods may be returned without Seller's authorization. A restocking fee of 20% applies, except as provided in ¶ 9.

¶ 9. Distributor rebate program (2020). For 2020, Seller pays Buyer an annual rebate on net purchases at the rate of the highest tier reached, and that rate applies to all purchases. Tiers: net purchases of $2,300,000 or above earn 0.75%; net purchases of $3,900,000 or above earn 1.25%.

¶ 10. Integration. These terms supersede all prior terms.